

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DOMONYE KELLY

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. HAROONUL S. HASSAN, Shield No. 6703 (Tax Id. No. 964549), Individually and in his Official Capacity, DET. FABIAN MODESTO, Shield No. 7125 (Tax Id. No. 950897)(formerly Shield No. 8846), Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.
-----X

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
March 14, 2023


COHEN & FITCH LLP
233 Broadway, Suite 900
New York, N.Y. 10279
(212) 374-9115
By. Ilyssa S. Fuchs, Esq.
ifuchs@cohenfitch.com

TO:

THE CITY OF NEW YORK
c/o SYLVIA HINDS-RADIX
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007
ServiceECF@law.nyc.gov

P.O. HAROONUL S. HASSAN, Shield No. 6703 (Tax Id. No. 964549)
67th Precinct
2820 Snyder Ave.
Brooklyn, NY 11226

DET. FABIAN MODESTO, Shield No. 7125 (Tax Id. No. 950897)(formerly Shield No. 8846)
67th Precinct
2820 Snyder Ave.
Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DOMONYE KELLY,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. HAROONUL S. HASSAN, Shield No. 6703 (Tax Id. No. 964549), Individually and in his Official Capacity, DET. FABIAN MODESTO, Shield No. 7125 (Tax Id. No. 950897)(formerly Shield No. 8846), Individually and in his Official Capacity, and POLICE OFFICERS “JOHN DOE” #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

Defendants.

-----X

Plaintiff DOMONYE KELLY by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully allege as follows:

FACTS

1. Plaintiff DOMONYE KELLY is an African American male and has been at all relevant times a resident of Kings County in the City and State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department (“NYPD”), duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned the individually named defendants, P.O. HAROONUL S. HASSAN, Shield No. 6703 (Tax Id. No. 964549), DET. FABIAN MODESTO, Shield No. 7125 (Tax Id. No. 950897)(formerly Shield No. 8846), and POLICE OFFICERS “JOHN DOE” #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about October 23, 2021, plaintiff DOMONYE KELLY was lawfully in the vicinity of Avenue D and E. 46th St., in the County of Kings, City, and State of New York.

9. At approximately 12:38 a.m., on the above-mentioned date and in the vicinity of the above-mentioned location, plaintiff, who was a passenger in a vehicle that had just parked at said location, went to go exit said vehicle, when he observed flashlights pointing in his direction, and heard an unknown voice yell, in sum and substance, for him to get back into said vehicle.

10. Plaintiff did not observe any police officers at this time and was confused about what was occurring. However, before plaintiff had the opportunity to react, multiple NYPD officers forcefully pushed plaintiff back into said vehicle by pushing the door closed.

11. Several moments later, despite the fact plaintiff had not committed any crimes and/or violations of the law, defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10, directed plaintiff to step out of said vehicle and then immediately seized plaintiff’s person, placing him up against the vehicle.

12. Additionally, defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 searched plaintiff’s person and effects. However, no contraband was recovered as a result of this search nor did plaintiff possess any contraband and/or have custody or control over same.

13. At no time on October 23, 2021, did defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 possess probable cause and/or reasonable suspicion to approach plaintiff and/or search plaintiff’s person and/or effects nor did they obtain voluntary consent from him to do so.

14. At no time on October 23, 2021, did defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff’s person and/or effects.

15. In addition, upon information and belief defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10, searched the vehicle wherein plaintiff was a passenger. However, no contraband was recovered as a result of this search nor did plaintiff possess any contraband and/or have custody or control over same.

16. Immediately thereafter, defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10, placed plaintiff under arrest by handcuffing his arms tightly behind his back.

17. At no time on October 23, 2021, did defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 possess probable cause to arrest plaintiff.

18. At no time on October 23, 2021, did defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

19. At no time on October 23, 2021, did plaintiff possess any contraband, weapons, and/or ammunition, nor did plaintiff have custody and control over any contraband, weapons, and/or ammunition, nor did plaintiff commit any crimes or offenses or behave unlawfully in any way, nor was any evidence, contraband, ammunition, and/or weapons found on plaintiff’s person or in his effects.

20. Subsequently, defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 placed plaintiff in an NYPD vehicle and transported him to a nearby police precinct.

21. Upon arrival at said precinct, plaintiff was searched again, fingerprinted, photographed, confined against his will in a holding cell for several hours, questioned/interrogated, and charged with crimes by defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10.

22. Specifically, defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 charged plaintiff with Criminal Possession of a Weapon in the Second Degree, Criminal Possession of a Firearm, Criminal Possession of a Weapon in the Fourth Degree, Unlicensed Firearms, and Possession of Pistol Ammunition. However, at no time did plaintiff commit any of the aforementioned crimes and/or offenses nor possess any contraband, weapons, or ammunition, or have custody or control over same, nor did he behave unlawfully in any way.

23. After being detained at said precinct for several hours, plaintiff was transported to Central Booking where he was searched, moved from cell to cell, and further detained.

24. Following his arraignment, bail was set and plaintiff remained detained at Rikers Island.

25. In connection with plaintiffs' arrest, defendants HASSAN, MODESTO, and/or "JOHN DOE" #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the Kings County District Attorney's Office. Thereafter, defendants HASSAN, MODESTO, and/or "JOHN DOE" #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest.

26. Specifically, defendants HASSAN, MODESTO, and/or "JOHN DOE" #1-10 falsely stated, *inter alia*, that they had observed plaintiff reaching back behind the front driver's-side seat at the time defendants HASSAN, MODESTO, and/or "JOHN DOE" #1-10 first approached plaintiff. Defendants HASSAN, MODESTO, and/or "JOHN DOE" #1-10 further falsely stated, *inter alia*, that they observed and recovered a black firearm from behind the front driver's seat and observed it was loaded.

27. As a result of the foregoing, plaintiff spent approximately two (2) days in custody before he was released from Rikers Island.

28. Thereafter, plaintiff was maliciously prosecuted and was forced to make approximately five (5) to six (6) additional court appearances, before all charges against him were dismissed and sealed in their entirety on or about April 29, 2022.

29. In addition, as a result of the foregoing, plaintiff suffered physical injuries, including, but not limited to, pain and injury to his wrists/arms, as a result of being tightly handcuffed.

30. As a result of the foregoing, plaintiff sustained, *inter alia*, loss of liberty, economic damages, physical injuries and pain, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF **DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

31. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

32. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

33. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

34. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

35. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

36. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

38. As a result of the aforesaid conduct by defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, reasonable suspicion, privilege or consent.

39. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF
UNLAWFUL SEARCH AND SEIZURE UNDER 42 U.S.C. § 1983

40. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

41. As a result of the aforesaid conduct by defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10, plaintiff’s person, possessions, vehicle, and/or effects were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

FOURTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

42. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

43. Defendant police officers HASSAN, MODESTO, and/or POLICE OFFICERS “JOHN DOE” #1-10 misrepresented and falsified evidence before the Kings County District Attorney.

44. Defendants HASSAN, MODESTO, and/or POLICE OFFICERS “JOHN DOE” #1-10 did not make a complete and full statement of facts to the District Attorney.

45. Defendants HASSAN, MODESTO, and/or POLICE OFFICERS “JOHN DOE” #1-10 withheld exculpatory evidence from the District Attorney.

46. Defendants HASSAN, MODESTO, and/or POLICE OFFICERS “JOHN DOE” #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

47. Defendants HASSAN, MODESTO, and/or POLICE OFFICERS “JOHN DOE” #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.

48. Defendants HASSAN, MODESTO, and/or POLICE OFFICERS “JOHN DOE” #1-10 acted with malice in initiating criminal proceedings against plaintiff.

49. Defendants HASSAN, MODESTO, and/or POLICE OFFICERS “JOHN DOE” #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

50. Defendants HASSAN, MODESTO, and/or POLICE OFFICERS “JOHN DOE” #1-10 lacked probable cause to continue criminal proceedings against plaintiff.

51. Defendants HASSAN, MODESTO, and/or POLICE OFFICERS “JOHN DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff.

52. Defendants HASSAN, MODESTO, and/or POLICE OFFICERS “JOHN DOE” #1-10 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

53. Specifically, defendants HASSAN, MODESTO, and/or POLICE OFFICERS “JOHN DOE” #1-10 falsely stated to the District Attorney that *inter alia*, that they had observed plaintiff reaching back behind the front driver’s-side seat at the time defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 first approached plaintiff. Defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 further falsely stated, *inter alia*, that they observed and recovered a black firearm from behind the front driver’s seat and observed it was loaded.

54. Notwithstanding the perjurious and fraudulent conduct of defendants HASSAN, MODESTO, and/or POLICE OFFICERS “JOHN DOE” #1-10, the criminal proceeding against plaintiff was dismissed in its entirety on or about April 29, 2022

55. As a result of this prosecution, plaintiff spent approximately two (2) days in jail and had to make multiple court appearances for approximately six (6) months, before the charges against him were dismissed.

56. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

57. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

58. Defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 created false evidence against the plaintiff.

59. Defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Kings County District Attorney’s Office – namely, the defendants falsely informed prosecutors, *inter alia*, that they had observed plaintiff

reaching back behind the front driver's-side seat at the time defendants HASSAN, MODESTO, and/or "JOHN DOE" #1-10 first approached plaintiff. Defendants HASSAN, MODESTO, and/or "JOHN DOE" #1-10 further falsely stated, *inter alia*, that they observed and recovered a black firearm from behind the front driver's seat and observed it was loaded.

60. Defendants HASSAN, MODESTO, and/or "JOHN DOE" #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

61. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants HASSAN, MODESTO, and/or "JOHN DOE" #1-10 violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

62. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SIXTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

63. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

64. Defendants HASSAN, MODESTO, and/or "JOHN DOE" #1-10 had an affirmative duty, and the opportunity to intercede when plaintiff's constitutional rights were being violated in defendants' HASSAN, MODESTO, and/or "JOHN DOE" #1-10 presence by the fabrication of evidence.

65. Defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 further violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.

66. As a result of the defendants’ HASSAN, MODESTO, and/or “JOHN DOE” #1-10 failure to intercede when plaintiff’s constitutional rights were being violated in defendants’ HASSAN, MODESTO, and/or “JOHN DOE” #1-10 presence, plaintiff sustained, *inter alia*, physical injuries, loss of liberty, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

SEVENTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

67. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

68. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

69. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer’s arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,

- D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
 - E. fabricating and/or omitting evidence in connection with individual(s) arrest(s)/prosecution(s) notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing, for the purpose of obtaining overtime compensation; and,
 - F. failing to intercede to prevent violations of plaintiff's constitutional rights; and
 - G. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.
70. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiff.
71. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.
72. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.
73. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.
74. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.
75. The acts complained of deprived the plaintiff of his rights:
- A. Not to be deprived of liberty without due process of law;

- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

**PENDANT CITY LAW CLAIMS PURSUANT TO 2021 N.Y.C. LOCAL LAW NO. 48,
N.Y.C. ADMIN. CODE §§ 8 – 8802, ET SEQ.**

**FIRST CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – UNREASONABLE SEARCH & SEIZURE**

76. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

77. The acts of defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

78. The acts of HASSAN, MODESTO, and/or “JOHN DOE” #1-10 caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures.

79. Defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully seized, frisked, and searched the plaintiff, before detaining plaintiff and further causing his detention for approximately two (2) days in total.

80. By reason of the acts and omissions by defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 as described above, plaintiff has endured *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and was otherwise damaged and/or injured.

SECOND CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – FAILURE TO INTERVENE

81. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

82. The acts of defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

83. Defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 had a duty to protect plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures.

84. The defendants that did not engage in the unreasonable search and seizure of plaintiff as outlined above, but were present when other officers violated those rights of plaintiff, had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

85. Defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect plaintiff from a violation of his rights.

86. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

THIRD CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – CITY LIABILITY
UNREASONABLE SEARCH/SEIZURE

87. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

88. Defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as Special Patrolmen.

89. Defendant THE CITY OF NEW YORK as the employer of the covered individual defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 is liable to the plaintiff for the wrongdoing of the covered individual defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10.

90. The acts of defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

91. The acts of HASSAN, MODESTO, and/or “JOHN DOE” #1-10 caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures.

92. That defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully searched/seized plaintiff.

93. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages,

emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

**FOURTH CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – CITY LIABILITY FAILURE TO INTERVENE**

94. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

95. Defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

96. Defendant THE CITY OF NEW YORK as the employer of the covered individual defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 is liable to the plaintiff for the wrongdoing of the covered individual defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10.

97. The acts of defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

98. Defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 had a duty to protect plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures.

99. The defendants that did not engage in the unreasonable search and seizure of plaintiff as outlined above, but were present when other officers violated those rights of plaintiff, had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

100. Defendants HASSAN, MODESTO, and/or “JOHN DOE” #1-10 failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect plaintiff from a violation of his rights.

101. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys’ fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys’ fees, interest, costs, and disbursements of this action.

Dated: New York, New York
March 14, 2023

BY: 
ILYSSA FUCHS
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 900
New York, N.Y. 10279
(212) 374-9115
ifuchs@cohenfitch.com

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff DOMONYE KELLY in the within-entitled action.

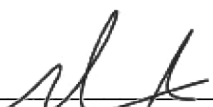
That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
March 14, 2023



ILYSSA S. FUCHS